

Senate File 648

S-3156

1 Amend Senate File 648 as follows:

2 1. By striking everything after the enacting clause and
3 inserting:

4 <DIVISION I

5 FY 2025-2026 APPROPRIATIONS

6 Section 1. JUDICIAL BRANCH.

7 1. There is appropriated from the general fund of the state
8 to the judicial branch for the fiscal year beginning July 1,
9 2025, and ending June 30, 2026, the following amounts, or so
10 much thereof as is necessary, to be used for the purposes
11 designated:

12 a. For salaries of supreme court justices, appellate court
13 judges, district court judges, district associate judges,
14 associate juvenile judges, associate probate judges, judicial
15 magistrates and staff, state court administrator, clerk of
16 the supreme court, district court administrators, clerks of
17 the district court, juvenile court officers, board of law
18 examiners, board of examiners of shorthand reporters, and
19 commission on judicial qualifications; receipt and disbursement
20 of child support payments; reimbursement of the auditor
21 of state for expenses incurred in completing audits of the
22 offices of the clerks of the district court during the fiscal
23 year beginning July 1, 2025; and maintenance, equipment, and
24 miscellaneous purposes:

25 \$202,691,378

26 b. For deposit in the revolving fund created pursuant to
27 section 602.1302, subsection 3, for jury and witness fees,
28 mileage, costs related to summoning jurors, costs and fees for
29 interpreters and translators, and reimbursement of attorney
30 fees paid by the state public defender:

31 \$ 3,600,000

32 c. For payment of expenses for court-ordered services
33 provided to juveniles who are under the supervision of juvenile
34 court services, which expenses are a charge upon the state
35 pursuant to section 232.141, subsection 4:

1 \$ 3,290,000

2 (1) Of the moneys appropriated in this lettered paragraph,
3 no more than \$1,556,000 is allocated to provide school-based
4 supervision of children under chapter 232, of which no more
5 than \$25,000 may be used for purposes of training.

6 (2) Notwithstanding section 232.141 or any other provision
7 of law to the contrary, the moneys appropriated in this
8 lettered paragraph shall be distributed to the judicial
9 districts as determined by the state court administrator. The
10 state court administrator shall make the determination of the
11 distribution amounts within thirty days of the date on which
12 the annual census data is released.

13 (3) Notwithstanding chapter 232 or any other provision of
14 law to the contrary, a district or juvenile court shall not
15 order any service which is a charge upon the state pursuant
16 to section 232.141 if there are insufficient court-ordered
17 services moneys available in the district court distribution
18 amounts to pay for the service. The chief juvenile court
19 officer shall encourage use of the moneys appropriated in this
20 lettered paragraph such that there are sufficient moneys to pay
21 for all court-ordered services during the entire fiscal year.
22 The chief juvenile court officer shall attempt to anticipate
23 potential surpluses and shortfalls in the distribution amounts
24 and shall cooperatively request the state court administrator
25 to transfer moneys between the judicial districts' distribution
26 amounts as prudent.

27 (4) Notwithstanding any provision of law to the contrary,
28 a district or juvenile court shall not order a county to pay
29 for any service provided to a juvenile pursuant to an order
30 entered under chapter 232 which is a charge upon the state
31 under section 232.141, subsection 4.

32 (5) Of the moneys appropriated in this lettered paragraph,
33 no more than \$83,000 may be used by the judicial branch
34 for administration of the requirements under this lettered
35 paragraph.

1 (6) Of the moneys appropriated in this lettered paragraph,
2 an amount not to exceed the actual cost of the annual
3 membership fee is allocated to the judicial branch to support
4 the interstate commission for juveniles in accordance with
5 the interstate compact for juveniles as provided in section
6 232.173.

7 (7) Notwithstanding section 8.33, moneys appropriated in
8 this lettered paragraph that remain unencumbered or unobligated
9 at the close of the fiscal year shall not revert but shall
10 remain available for expenditure for the purposes designated
11 until the close of the fiscal year that begins July 1, 2028.

12 d. For juvenile delinquent graduated sanctions services
13 pursuant to section 232.192:

14 \$ 12,253,000

15 (1) Any state moneys saved as a result of efforts by
16 juvenile court services to earn a federal fund match pursuant
17 to Tit. IV-E of the federal Family First Prevention Services
18 Act of 2018, Pub. L. No. 115-123, for juvenile court services
19 administration is appropriated to the judicial branch for
20 purposes of this lettered paragraph.

21 (2) Notwithstanding section 8.33, moneys appropriated in
22 this lettered paragraph that remain unencumbered or unobligated
23 at the close of the fiscal year shall not revert but shall
24 remain available for expenditure for the purposes designated
25 until the close of the fiscal year that begins July 1, 2028.

26 2. The judicial branch, except for purposes of internal
27 processing, shall use the current state budget system, the
28 state payroll system, and the Iowa finance and accounting
29 system in administration of programs and payments for services,
30 and shall not duplicate the state payroll, accounting, and
31 budgeting systems.

32 3. The judicial branch shall submit monthly financial
33 statements to the legislative services agency and the
34 department of management containing all appropriated accounts
35 in the same manner as provided in the monthly financial status

1 reports and personal services usage reports of the department
2 of administrative services. The monthly financial statements
3 shall include a comparison of the dollars and percentage
4 spent of budgeted versus actual revenues and expenditures on
5 a cumulative basis for full-time equivalent positions and
6 dollars.

7 4. The judicial branch shall focus efforts upon the
8 collection of delinquent fines, penalties, court costs, fees,
9 surcharges, or similar amounts.

10 5. It is the intent of the general assembly that the offices
11 of the clerks of the district court operate in all 99 counties
12 and be accessible to the public as much as is reasonably
13 possible in order to address the relative needs of the citizens
14 of each county. An office of the clerk of the district court
15 shall be open regular courthouse hours.

16 6. In addition to the requirements for transfers under
17 section 8.39, the judicial branch shall not change the
18 appropriations from the amounts appropriated to the judicial
19 branch in this Act, unless notice of the revisions is given to
20 the legislative services agency prior to the effective date.
21 The notice shall include information on the judicial branch's
22 rationale for making the changes and details concerning the
23 workload and performance measures upon which the changes are
24 based.

25 7. The judicial branch shall submit a semiannual update to
26 the legislative services agency and department of management
27 specifying the amounts of fines, surcharges, and court costs
28 collected using the Iowa court information system since the
29 last report. The judicial branch shall continue to facilitate
30 the sharing of vital sentencing and other information with
31 other state departments and governmental agencies involved in
32 the criminal justice system through the Iowa court information
33 system.

34 8. The judicial branch shall provide a report to the general
35 assembly and department of management by January 1, 2026,

1 concerning the amounts received and expended from the court
2 technology and modernization fund created in section 602.8108,
3 subsection 7, during the fiscal year beginning July 1, 2024,
4 and ending June 30, 2025, and the plans for expenditures from
5 the fund during the fiscal year beginning July 1, 2025, and
6 ending June 30, 2026.

7 Sec. 2. CIVIL TRIALS — LOCATION. Notwithstanding any
8 provision to the contrary, for the fiscal year beginning July
9 1, 2025, and ending June 30, 2026, if all parties in a case
10 agree, a civil trial including a jury trial may take place in a
11 county contiguous to the county with proper jurisdiction, even
12 if the contiguous county is located in an adjacent judicial
13 district or judicial election district. If the trial is moved
14 pursuant to this section, court personnel shall treat the case
15 as if a change of venue occurred.

16 Sec. 3. TRAVEL REIMBURSEMENT. Notwithstanding section
17 602.1509, for the fiscal year beginning July 1, 2025, and
18 ending June 30, 2026, a judicial officer may waive travel
19 reimbursement for any travel outside the judicial officer's
20 county of residence to conduct official judicial business.

21 Sec. 4. JUDICIAL OFFICER — UNPAID LEAVE. Notwithstanding
22 the annual salary rates for judicial officers established by
23 this division of this Act for the fiscal year beginning July
24 1, 2025, and ending June 30, 2026, the supreme court may by
25 order place all judicial officers on unpaid leave status on any
26 day employees of the judicial branch are placed on temporary
27 layoff status. The biweekly pay of the judicial officers shall
28 be reduced accordingly for the pay period in which the unpaid
29 leave date occurred in the same manner as for noncontract
30 employees of the judicial branch. Through the course of the
31 fiscal year, the judicial branch may use an amount equal to
32 the aggregate amount of salary reductions due to the judicial
33 officer unpaid leave days for any purpose other than for
34 judicial salaries.

35 Sec. 5. IOWA COMMUNICATIONS NETWORK. It is the intent

1 of the general assembly that the judicial branch utilize
2 the Iowa communications network or other secure electronic
3 communications in lieu of traveling for the fiscal year
4 beginning July 1, 2025, and ending June 30, 2026.

5 Sec. 6. SALARIES — STATE COURT JUSTICES, JUDGES, AND
6 MAGISTRATES.

7 1. The salary rates specified in subsection 2 are for the
8 fiscal year beginning July 1, 2025, effective for the pay
9 period beginning June 20, 2025, and for subsequent fiscal
10 years until otherwise provided by the general assembly. The
11 salaries provided for in this section shall be paid from moneys
12 appropriated to the judicial branch pursuant to this division
13 of this Act or any other Act of the general assembly.

14 2. The following annual salary rates shall be paid to the
15 persons holding the judicial positions indicated during the
16 fiscal year beginning July 1, 2025, effective with the pay
17 period beginning June 20, 2025, and for subsequent pay periods:

18 a. Chief justice of the supreme court:

19 \$ 211,059

20 b. Each justice of the supreme court:

21 \$ 201,609

22 c. Chief judge of the court of appeals:

23 \$ 189,010

24 d. Each associate judge of the court of appeals:

25 \$ 182,709

26 e. Each chief judge of a judicial district:

27 \$ 176,409

28 f. Each district judge except the chief judge of a judicial
29 district:

30 \$ 170,108

31 g. Each district associate judge:

32 \$ 151,208

33 h. Each associate juvenile judge:

34 \$ 151,208

35 i. Each associate probate judge:

1 \$ 151,208
2 j. Each judicial magistrate:
3 \$ 46,621
4 k. Each senior judge:
5 \$ 10,080

6 3. Persons receiving salary rates established under this
7 section shall not receive any additional salary adjustments
8 provided by this division of this Act or any other Act of the
9 general assembly.

10 Sec. 7. EFFECTIVE DATE. The section of this division of
11 this Act enacting salaries for state court justices, judges,
12 and magistrates takes effect June 20, 2025.

13 DIVISION II
14 INTERPRETER OR TRANSLATOR FEES

15 Sec. 8. Section 602.1302, subsection 3, Code 2025, is
16 amended to read as follows:

17 3. A revolving fund is created in the state treasury for
18 the payment of jury and witness fees, mileage, costs related to
19 summoning jurors by the judicial branch, costs and fees related
20 to the management and payment of interpreters and translators
21 in judicial branch legal proceedings and court-ordered
22 programs, and attorney fees paid by the state public defender
23 for counsel appointed pursuant to [section 600A.6A](#). The
24 judicial branch shall deposit any reimbursements to the state
25 for the payment of jury and witness fees, and mileage fees,
26 and interpreter or translator fees in the revolving fund. In
27 each calendar quarter the judicial branch shall reimburse
28 the state public defender for attorney fees paid pursuant to
29 [section 600A.6B](#). Notwithstanding [section 8.33](#), unencumbered
30 and unobligated receipts in the revolving fund at the end of
31 a fiscal year do not revert to the general fund of the state.
32 The judicial branch shall on or before February 1 file a
33 financial accounting of the moneys in the revolving fund with
34 the legislative services agency. The accounting shall include
35 an estimate of disbursements from the revolving fund for the

1 remainder of the fiscal year and for the next fiscal year.

2 Sec. 9. Section 602.8107, subsection 3, paragraph b, Code
3 2025, is amended to read as follows:

4 **b.** The department of revenue shall receive fifteen percent
5 of each court debt payment collected on cases assigned to the
6 department of revenue for collection to reflect the cost of
7 processing and the remaining eighty-five percent of such court
8 debt collected shall be paid to the clerk of the district court
9 for distribution under [section 602.8108](#). The department of
10 revenue collection fee shall not include the amount of court
11 debt collected for restitution involving pecuniary damages, the
12 victim compensation fund, the crime services surcharge, the
13 domestic and sexual abuse crimes surcharge, the agricultural
14 theft surcharge, or the sex offender civil penalty, or
15 interpreter or translator fees.

16 Sec. 10. Section 602.8107, subsection 4, paragraph a, Code
17 2025, is amended to read as follows:

18 **a.** [This subsection](#) does not apply to amounts collected
19 for restitution involving pecuniary damages, the victim
20 compensation fund, the crime services surcharge, the domestic
21 and sexual abuse crimes surcharge, the agricultural theft
22 surcharge, the sex offender civil penalty, interpreter or
23 translator fees, or under [section 421.65](#).

24 2. Title page, line 2, after <branch> by inserting
25 <including judicial officer salaries and interpreter or
26 translator fees, and including effective date provisions>

JULIAN GARRETT